

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Alexander Schiavo	Team: Team # 4	CCRB Case #: 201402594	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☒ O.L.	☐ Injury
Incident Date(s) Wednesday, 03/12/2014 3:30 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 9/12/2015	Precinct: 113		
Date/Time CV Reported Wed, 03/12/2014 8:00 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 03/18/2014 3:51 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Matthew Lewis	25652	941054	113 PCT
2. SGT Christophe Ward	02117	934299	113 PCT
3. POM Christopher Oconnor	09080	949410	113 PCT
4. POM Thomas Reo	5817	946153	113 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Matthew Lewis	Discourtesy: PO Matthew Lewis spoke discourteously to § 87(2)(b)	A . Unsubstantiated
B . POM Matthew Lewis	Abuse: PO Matthew Lewis entered § 87(2)(b) in Queens.	B . Exonerated
C . SGT Christophe Ward	Abuse: Sgt. Christopher Ward entered § 87(2)(b) in Queens.	C . Exonerated
D . POM Thomas Reo	Abuse: PO Thomas Reo entered § 87(2)(b) in Queens.	D . Exonerated
E . POM Matthew Lewis	Force: PO Matthew Lewis used a chokehold against § 87(2)(b)	E . Unsubstantiated
F . POM Matthew Lewis	Force: PO Matthew Lewis restricted § 87(2)(b)'s breathing.	F . Unsubstantiated
G . POM Matthew Lewis	Force: PO Matthew Lewis used physical force against § 87(2)(b)	G . Unsubstantiated
H . POM Thomas Reo	Abuse: PO Thomas Reo threatened § 87(2)(b) with the use of force.	H . Unsubstantiated
I . POM Thomas Reo	Force: PO Thomas Reo used physical force against § 87(2)(b)	I . Unsubstantiated
J . POM Thomas Reo	Off. Language: PO Thomas Reo made remarks to § 87(2)(b) based upon race.	J . Unsubstantiated
K . POM Matthew Lewis	Force: PO Matthew Lewis pointed his gun at § 87(2)(b)	K . Unsubstantiated
L . SGT Christophe Ward	Abuse: Sgt. Christopher Ward searched § 87(2)(b) in Queens.	L . Unsubstantiated
M . SGT Christophe Ward	Discourtesy: Sgt. Christopher Ward spoke discourteously to § 87(2)(b)	M . Unsubstantiated
N . SGT Christophe Ward	Force: Sgt. Christopher Ward used physical force against § 87(2)(b)	N . Unsubstantiated

Officer(s)	Allegation	Investigator Recommendation
O . POM Thomas Reo	Discourtesy: PO Thomas Reo spoke discourteously to § 87(2)(b)	O . Unsubstantiated
P . POM Matthew Lewis	Abuse: PO Matthew Lewis searched § 87(2)(b) in Queens.	P . Unsubstantiated
Q . POM Matthew Lewis	Force: PO Matthew Lewis struck § 87(2)(b) with a gun.	Q . Unsubstantiated
R . POM Christopher Oconnor	Discourtesy: PO Christopher Oconnor spoke discourteously to § 87(2)(b)	R . Unsubstantiated

Case Summary

On March 12, 2014, at approximately 3:30 p.m., § 87(2)(b) left his friend § 87(2)(b)'s house, located at § 87(2)(b) in Queens, to buy rolling paper for marijuana. Shortly after leaving, he realized that he only had a \$20 bill, so he decided to return in order to retrieve smaller bills. § 87(2)(b) entered the side door of the house and was about to proceed downstairs to the basement level where § 87(2)(b) lives. § 87(2)(b) was not present at the time of the incident, but her brother § 87(2)(b) was present in the upper level of the house.

Immediately after § 87(2)(b) closed the side door, he heard a boom and felt someone trying to push the door open, so he held the door to prevent a forced entry. A male, later identified as PO Matthew Lewis of the 113th Precinct, said, "This motherfucker, he's holding the fucking door. Just open the fucking door" (**Allegation A**).

§ 87(2)(b) opened the door and saw three officers: PO Lewis, PO Thomas Reo, and Sgt. Christopher Ward of the 113th Precinct. PO Lewis grabbed § 87(2)(b) by the throat with his left hand and pushed his way into the house, followed by Sgt. Ward and PO Reo (**Allegations B, C, and D**). This action restricted § 87(2)(b)'s breathing for a few seconds (**Allegations E and F**). PO Lewis held the front collar of § 87(2)(b)'s shirt and forced him down to the basement level. At the bottom of the stairwell, § 87(2)(b) fell onto his back and held his hands in front of his face. § 87(2)(b) yelled, "Yo Lewis, what you doing?" PO Lewis responded, "Shut the fuck up" (**Allegation A**) and then punched § 87(2)(b) three to four times in the right side of the face (**Allegation G**).

PO Reo and Sgt. Ward handcuffed § 87(2)(b) at which point PO Reo threatened to "fucking kill" him (**Allegation H**). Either PO Reo or Sgt. Ward, § 87(2)(b) was unsure who, kicked § 87(2)(b) in between the left ear and left eye (**subsumed in Allegations I and N**). PO Lewis searched § 87(2)(b) and recovered marijuana. He asked "whose fucking weed" it was, and § 87(2)(b) said it was his (**Allegation A**). PO Lewis then punched § 87(2)(b) in the face again (**Allegation G**).

PO Lewis said, "Where are the fucking guns, § 87(2)(b)" (**Allegation A**). When § 87(2)(b) said there were no guns, PO Reo kicked § 87(2)(b) in the face (**Allegation I**). At first, § 87(2)(b) stated that an officer choked him while he was in the basement, but later clarified that the only time pressure was applied to his throat was when PO Lewis initially grabbed him.

§ 87(2)(b) complained that he could not breathe (§ 87(2)(b)). PO Lewis said, "We should let this motherfucker die" (**Allegation A**). PO Reo added, "He's a fucking savage" (**Allegation J**). PO Lewis removed his gun and held the barrel approximately one inch from the front of § 87(2)(b)'s face (**Allegation K**). PO Reo then kicked § 87(2)(b) in the stomach (**Allegation I**).

Sgt. Ward opened up a bedroom door and searched one of the bedrooms in the basement (**Allegation L**). A second bedroom door was locked. Sgt. Ward asked, "Who the fuck else is inside the room?" (**Allegation M**). § 87(2)(b) denied that anyone was in the basement, at which point Sgt. Ward punched § 87(2)(b) in the left side of the face (**Allegation N**) and asked where the "fucking guns" were (**Allegation M**). Immediately thereafter, PO Lewis punched § 87(2)(b) in the forehead (**Allegation G**). He told § 87(2)(b) "Tell us where the fucking guns are" (**Allegation A**). § 87(2)(b) responded that there were no guns and he did not live there. PO Lewis said, "You do now, motherfucker" (**Allegation A**).

Sgt. Ward returned from the bedroom with a red thermos and asked, "Whose fucking weed is this?" (**Allegation M**). PO Reo said, "That's your fucking weed" (**Allegation O**). PO Lewis went into the bedroom and moved a dresser, at which point he said, "We got it" (**Allegation P**). PO Reo stated, "The fucker going to jail. We got you now, you motherfucker."

You black son of a bitch. You fucking savage” (**Allegations J and O**). PO Lewis recovered a gun, but § 87(2)(b) did not know whose gun it was since he does not live there.

PO Lewis struck § 87(2)(b) in the back of the head with his gun (**Allegation Q**) and then brought § 87(2)(b) upstairs. As he did so, he saw a knife that was being used in a construction project that was taking place in the basement and told § 87(2)(b) that he would be charged with possession of that knife. PO Reo slapped § 87(2)(b) in the face (**Allegation I**) and said, “We got you this time, dickhead” (**Allegation O**).

There was a large group of officers outside the house. § 87(2)(b) was placed in the back of a police vehicle, where he screamed that he could not breathe because § 87(2)(b) and a 5’8” white male officer who had a heavy build, had black medium length hair, and was identified by the investigation as PO Christopher O’Connor of the 113th Precinct, said, “Fuck you. I don’t have anything to do with your fucking asthma” (**Allegation R**). PO O’Connor then placed the asthma pump into § 87(2)(b)’s mouth.

§ 87(2)(b), § 87(2)(a) PHL § 18(6)

§ 87(2)(b) was then transported to the 113th Precinct stationhouse.

At the stationhouse, PO Reo told § 87(2)(b) “We got you this time, black motherfucker. Dickhead. You stupid black motherfucker... You’re doing three and a half years for this one” (**Allegations J and O**). § 87(2)(b) was charged with § 87(2)(b) (complaint encl. 15, statement encl. 18-21).

Civil and Criminal Histories

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
- § 87(2)(b) has not filed a Notice of Claim regarding the incident (encl. 113).

Civilian and Officer CCRB Histories

- PO Lewis has been the subject of 50 CCRB allegations, seven of which have been substantiated. In CCRB #201401420, allegations of force, discourtesy, and threat of force were substantiated. PO Lewis was accused of a chokehold in CCRB #201305464, which was closed by the board as complainant uncooperative. NYPD dispositions are pending for all of the substantiated allegations (encl. 3-5).
- Sgt. Ward has been the subject of 38 CCRB allegations. An allegation of premises entered/searched was substantiated in CCRB #200905624. Sgt. Ward was found not guilty after a DCT trial (encl. 6-9).
- PO Reo has been the subject of 43 CCRB allegations, one of which (a stop) has been substantiated. An NYPD disposition is pending for this allegation (encl. 10-12).
- PO O’Connor has never been the subject of a CCRB complaint that was fully investigated (encl. 13).

- This is the first CCRB complaint in which § 87(2)(b) has been a victim (encl. 14).

Findings and Recommendations

Explanation of Subject Officer Identification

§ 87(2)(b) identified PO Lewis by name during his interview. He described PO Lewis' partners as a 5'11" tall white male with a stocky build and a 6'2" tall white male with a thin build. Sgt. Ward is § 87(2)(b) white male with a stocky build, and PO Reo is a § 87(2)(b) white male with a thin build. § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b) also made a discourtesy allegation against one of the officers who transported him from the scene. According to the corresponding SPRINT, Sector N of the 113th Precinct transported § 87(2)(b) from the scene. The two officers assigned to Sector N were PO O'Connor and PO Brian Volpi. The subject officer of Allegation R was described as a 5'8" tall white male with a heavy build who had black medium length hair. PO O'Connor is a § 87(2)(b) white male who has a heavy build and black medium length hair. As per a search of EDMS, PO Volpi is a white male who is § 87(2)(b), and has brown hair § 87(2)(g)

§ 87(2)(b)

Allegation A – Discourtesy: PO Matthew Lewis spoke discourteously to § 87(2)(b)

§ 87(2)(b) alleged that after he closed the side door to § 87(2)(b) § 87(2)(b), he heard a boom and then PO Lewis said, "This motherfucker he's holding the fucking door. Just open the fucking door," in addition to multiple other discourtesies throughout the incident. During PO Lewis' interview on July 31, 2014, he denied this allegation (encl. 35-37). When Sgt. Ward (encl. 41-43) and PO Reo (encl. 48-50) were interviewed on July 29, 2014, they denied hearing PO Lewis make this remark. There were no witnesses or independent evidence to corroborate either version. Therefore, it is recommended that **Allegation A be closed as Unsubstantiated.**

Allegation B – Abuse of Authority: PO Matthew Lewis entered § 87(2)(b) in Queens.

Allegation C – Abuse of Authority: Sgt. Christopher Ward entered § 87(2)(b) in Queens.

Allegation D – Abuse of Authority: PO Thomas Reo entered § 87(2)(b) in Queens.

It is undisputed that PO Lewis, Sgt. Ward, and PO Reo entered § 87(2)(b) without a warrant. All three officers stated that at least one of them was aware that § 87(2)(b) had an open arrest warrant when they observed him. PO Lewis stated that he had assisted in the execution of a search warrant in which § 87(2)(b) was a subject at a different address a month before the incident. § 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

§ 87(2)(b)

§ 87(2)(b) the warrant is referenced in § 87(2)(b)'s arrest report (encl. 29-31). PO Lewis, PO Reo and Sgt. Ward testified that when they exited their vehicle in order to apprehend § 87(2)(b) he saw them and fled into the residence. PO Lewis stated that he managed to get his foot in the door as § 87(2)(b) attempted to close it, after which entry was made and the officers arrested § 87(2)(b) inside. § 87(2)(b) stated that he did not see any police officers or police vehicles while he was walking outside. No one ever addressed him, said they were police, or told § 87(2)(b) to stop. According to his testimony, he had been outside walking to the store, but decided to return to the residence in order to get smaller bills when he realized he only had a \$20 bill. Then, only once he was inside the residence did he notice someone banging on the door and attempting to enter. He initially held the door shut but then opened it and was engaged by the officers.

§ 87(2)(g)

According to Criminal Procedure Law 120.80 (encl. 1-2a), officers may execute a bench warrant by entering any premises in which they reasonably believe the defendant to be present. Before the entry, officers must give notice of their authority and purpose unless the giving of such notice will result in the defendant attempting to escape, endanger the safety of another person, or result in the destruction of evidence.

According to People v. Skinner, a defendant cannot defeat an arrest which has been set in motion in a public place simply by escaping into a private place. People v. Skinner, 726 N.Y.S.2D 193, 2001 N.Y. App. Div. (encl. 2b).

§ 87(2)(g)

§ 87(2)(g)

Therefore, it is recommended that **Allegations B, C, and D** be closed as Exonerated.

Allegation E – Force: PO Matthew Lewis used a chokehold against § 87(2)(b)

Allegation F – Force: PO Matthew Lewis restricted § 87(2)(b) s breathing.

Allegation G – Force: PO Matthew Lewis used physical force against § 87(2)(b)

Allegation H – Abuse of Authority: PO Thomas Reo threatened § 87(2)(b) with the use of force.

Allegation I – Force: PO Thomas Reo used physical force against § 87(2)(b)

Allegation J – Offensive Language: PO Thomas Reo made remarks to § 87(2)(b) based upon race.

Allegation K – Force: PO Matthew Lewis pointed his gun at § 87(2)(b)

Allegation L – Abuse of Authority: Sgt. Christopher Ward searched § 87(2)(b) in Queens.

Allegation M – Discourtesy: Sgt. Christopher Ward spoke discourteously to § 87(2)(b)

Allegation N – Force: Sgt. Christopher Ward used physical force against § 87(2)(b)

Allegation O – Discourtesy: PO Thomas Reo spoke discourteously to § 87(2)(b)

Allegation P – Abuse of Authority: PO Matthew Lewis searched § 87(2)(b) in Queens.

Allegation Q – Force: PO Matthew Lewis struck § 87(2)(b) with a gun.

Allegation R – Discourtesy: PO Christopher O’Connor spoke discourteously to § 87(2)(b)

§ 87(2)(b) alleged numerous forms of excessive force—including being placed in a chokehold, punched, kicked, and slapped while in handcuffs, and struck with a gun—as well as a death threat from PO Reo, gratuitous discourteous remarks, and multiple uses of offensive language. § 87(2)(b) also alleged that Sgt. Ward opened a bedroom door in the basement and then found a thermos filled with marijuana, after which PO Lewis went in the room, moved a dresser, and recovered a gun.

PO Lewis, Sgt. Ward, and PO Reo all stated that none of them made contact with § 87(2)(b) before he reached the basement, but acknowledged that they tackled § 87(2)(b) to the floor in the basement. They denied using any force beyond tackling § 87(2)(b) to the floor. PO Lewis denied pointing his gun at § 87(2)(b) and his partners denied seeing him do so. According to all three officers’ accounts, none of them used any profanity or offensive language towards § 87(2)(b) based on his race. PO Lewis, Sgt. Ward, and PO Reo all testified that there was marijuana in plain view in one of the bedrooms, but none of them searched the bedroom until a search warrant was obtained later that day.

PO Lewis, Sgt. Ward, and PO Reo denied hearing PO O’Connor curse at § 87(2)(b) as he placed § 87(2)(b) into a police vehicle for transport. PO O’Connor did not remember the incident, but denied cursing. § 87(2)(b) who provided a phone statement on July 24, 2014, indicated that he only went outside his home when he noticed § 87(2)(b) being escorted towards a police vehicle. § 87(2)(b) did not know § 87(2)(b)’s name. He did not remember whether § 87(2)(b) complained about the officers using excessive force, but did note that § 87(2)(b) was bleeding from his face. § 87(2)(b) did not hear PO O’Connor use profanity (encl. 22).

§ 87(2)(a) PHL § 18(6)

§ 87(2)(g)

§ 87(2)(g)

Therefore, it is recommended that **Allegations E – R be closed as Unsubstantiated.**

Team: _____

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date